

// specific review priorities + areas of concern

Cover Note to Legal Reviewer

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From: Kade Dunstone, founder, Body Recode **Re:** Founding Ten legal package v0.1 **Documents:** Founding Partner Agreement + IP Licence Deed **Prepared:** July 2026

01 What Body Recode is doing

Body Recode is licensing a proprietary interpretation engine + platform ("the Platform") to a capped group of ten allied coaches ("Founding Ten") under a subscription + per-active-client model. Each partner runs their own coaching business on the Platform, branded as theirs, powered by Body Recode's engine and doctrine.

The commercial relationship has three moving parts:

1. **The Platform** (Layer 2): a coaching web application, tenant-scoped per partner
2. **The Engine** (Layer 1): interpretation algorithms + doctrine rules that read a client's state and produce coaching direction
3. **The Brand**: partner uses their own brand primarily, with an optional "Powered by Body Recode" acknowledgement

The commercial arrangement is Partner pays Body Recode: - One-time setup fee at commencement - Monthly platform subscription (locked for life at Founding Ten rate) - Ongoing per-active-client fee, billed monthly in arrears

The Partner's clients pay the Partner directly (Stripe Connect). Partner keeps 100% of client revenue.

02 What we need from you

High-priority review areas

1. **IP scope** (Licence Deed sections 3-4, 6-8). We are licensing Layer 2 but keeping Layer 1 (the engine + doctrine) as ours. The line between what a partner can use, modify, and extend versus what stays proprietary needs to be watertight. Please tune the "Excluded IP" schedule so the engine cannot be reverse-engineered, sublicensed, or wrapped by the partner.
2. **Termination + wind-down** (Agreement sections 14, 15). What happens when a partner leaves or is terminated for cause? Client data, client relationships, tenant config, ongoing subscriptions their

clients have with the partner — all need clear post-termination pathways. Draft handles data return + client handover; please pressure test.

3. **Doctrine compliance + hard safety floors** (Agreement section 7, Schedule 3). The engine's safety limits (RRS clamps, Fat Map limits, injury contraindications, eligibility floors) **MUST** bind the partner. This is our public liability shield. Please make sure the drafting is enforceable.
4. **Data + privacy** (Agreement section 9). Partner is the primary data controller for their clients. Body Recode is a data processor. Please align with Australian Privacy Principles + Privacy Act 1988. Client data does not cross tenants and cannot be exported for other purposes.
5. **Australian Consumer Law implications** (Agreement sections 12, 13). Founding partners are businesses buying a business service, not consumers, so much of the ACL should not apply. But please review the warranties + disclaimers + liability caps for enforceability.
6. **Founding Ten discount lock-in** (Agreement section 6, Schedule 1). Setup discount + subscription rate is "locked for life." We want this to bind Body Recode even under change of control. Please make sure the drafting achieves that.

Standard review areas

7. **GST + tax treatment.** Body Recode is GST-registered. Fees quoted are ex-GST. Please confirm GST + withholding treatment for the three fee lines.
8. **Force majeure, assignment, entire agreement, notices.** Standard boilerplate but review as usual.
9. **Governing law + jurisdiction.** Queensland Courts. Confirm any conflicts.
10. **Execution formalities.** Should the IP Licence be executed as a deed (recommended, gives 12-year limitation period) or by simple contract?

Low-priority

11. Wordsmithing throughout — read for clarity and internal consistency.

03 What is deliberately out of scope for v0.1

- **The Powered Partner tier** (Tiers 1 + 2 in `OFFER_ARCHITECTURE.md`) — referral + funnel-attribution partners get a lighter one-page terms document. Not drafted yet.
- **Method-injection ("Mode B")** — reserved for post-Founding-Ten. All Founding Ten partners run Doctrine Mode A (BR doctrine branded as theirs). No IP contribution from partner in Mode A, so no reverse licence needed.
- **Reseller / white-label of the platform to third parties** — expressly prohibited in the Licence.

04 Timelines

- Legal review by legal reviewer: ideal turnaround 5 business days
- Kade to review redline: 2 business days
- Final v1.0: within 2 weeks of legal receiving these drafts
- First partner ready to sign: no committed date but we have a pilot lined up who could go as early as August 2026

05 Contact

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